JOICE MUKURECHAZA
versus
RONNY RONALD GUTUKUNHUWA
and
DESTINY OF AFRICA
and
CITY OF MUTARE

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 11 and 13 May 2026

CIVIL TRIAL

Ms *R.* Madondo, for the plaintiff
1st defendant in default

MUZENDA J:

1.0. **Preamble**

1.1. This matter was referred to trial by SIZIBA J presumably on the basis that there were material disputes of fact incapable of resolution on the papers. When the Registrar allocated me the matter, it was specifically for trial purposes. A notice of set down was issued and on 11 May 2026 the matter was heard virtually. First defendant did not appear. Plaintiff informed the court that the court may resolve the dispute on the pedestal bedrock of papers filed of record which among others are affidavits, annexures and summary evidence. Plaintiff's counsel also added that she does not intend to call any other witnesses nor produce any other documentary evidence nor cross-examine first defendant on any other issue.

1.2. It was further opined by the plaintiff/applicant's counsel that the fundamental thematic issue for determination is whether plaintiff disposed of her rights over the stand to first defendant. I was therefore persuaded by plaintiff to decide the matter as proposed.

2. On 18 August 2025 applicant approached this court armed with an application for a declarator in terms of s 14 of the High Court Act [*Chapter 7*:*06*] seeking the following relief appearing on her draft order:

> "WHEREUPON, after reading documents filed of record and hearing counsel
>
> *IT IS ORDERED THAT: -*
> a. *That the Applicant be declared to be the lawful holder of rights and title in stand 53 Hobhouse, Mutare, measuring 210 square metres.*
> b. *The purported agreement of sale facilitated by the 2nd Respondent, Destiny Developers (Pvt) Ltd, in favour of the 1st Respondent Ronald Gutukunhuwa, in respect of stand number 53 Hobhouse, Mutare, be declared null, void and of no force or effect.*
> c. *The first Respondent be and is hereby ordered to give vacant possession of Stand Number 53 Hobhouse, Mutare, measuring 210 square metres and or any part thereof to the Applicant.*
> d. *The First and Second Respondents be barred from interfering with the applicant's possession, occupation, control, ownership and use of stand Number 53 Hobhouse Mutare, measuring 210 square metres and or any part thereof to the Applicant.*
> e. *Costs of suit*"

3. On 12 September 2025 first respondent filed his opposing papers among other issues raising preliminary points relating to procedural impropriety more particularly in that there were apparent material disputes of fact that would require oral evidence and that applicant ought to have proceeded by way of action than an application. First respondent then proceeded to outline what he perceived constituted material disputes of fact. On the main matter first respondent contended that he legitimately purchased the stand from the applicant and paid her in full. To first respondent the applicant's claim lacked merit and was fit to be dismissed with costs. All pleadings pertaining to the application were closed and heads filed. O the date of hearing of the opposed application 27 November 2025 the matter was referred to trial proceedings because of the existence of irreconcilable material disputes of fact. All affidavits filed of record were to form declaration and pleas respectively and parties had to file papers in preparation of a pre-trial conference meeting.
4. On 18 January 2026 parties mutually agreed that the sole issue for determination on the date of trial was:

> "*Whether or not Plaintiff relinquished at any given point her rights in stand 53 Raheen Farm, Mutare, by selling the stand to the First Defendant*."

5. **Background Facts**

5.0. The applicant was allegedly approached by the second defendant sometime in 2012 where the latter was offered stand 53 Hobhouse for sale. The 2012 arrangement was subsequently reduced to a written agreement of sale on 2 July 2019 and applicant states that she fully paid for the undeveloped stand. According to the applicant she was shocked on 3 August 2025 when she discovered about the first defendant claiming to have purchased the very stand she had bought from second defendant. She was also deeply perturbed to discover that the subject stand was registered in first defendant's name at City of Mutare. All the cession steps taken by both first and second defendants to applicant were applicant's identity, details were utilized without her prior knowledge nor consent. She denied selling stand 53 Hobhouse to the first defendant and also distanced herself from any document authored by her leading to the change of ownership at the city of Mutare offices. The alleged agreement of sale entered between her and first defendant, she added was a nullity because everything on it is a product of forgery, misrepresentation and fraud. She urged the court to reject it and grant her the relief sought.

5.1. To the contrary first defendant contends that he was advised by plaintiff's agent one Gift Chinongwa that there was a stand for sale and then he subsequently purchased the stand for USD11 000. Plaintiff availed to the first defendant an affidavit of sale which was signed by a legal practitioner who appended her signature as a commissioner of oaths. First defendant adds that all the papers relating to the stand were brought to him by the plaintiff herself including her national identity card, the agreement of sale between plaintiff and second defendant. In addition, plaintiff signed a power of attorney utilizing first defendant's wife to sign all cession papers on plaintiff's behalf since plaintiff was locating to Harare. Before the power of attorney was signed by a lawyer, in his presence, the lawyer ensured that it was plaintiff signing the power of attorney. All the documents availed to first defendant by plaintiff were all original which made first defendant to part with his money to pay for the stand. Firs defendant took occupation of the property, developed it and resides at the property, he has been paying all utility bills and rates to the local authority and to the best of his knowledge he urged the court to regard him as a *bona fide* purchase. He prayed for the dismissal of the claim with costs.

6. **Plaintiff's Case**

6.0. From Plaintiff's papers it can be deduced that her firm position is that Destiny of Africa (second defendant) offered her stand 53 Hobhouse in 2012 and from that year she commenced to pay monthly installments towards the liquidation of the stand. On 2 July 2019 a Memorandum of an Agreement of sale was signed. To the plaintiff upon full payment of the purchase price she acquired real rights over stand 53 Hobhouse.

6.1. In August 2025 she fortuitously learnt that Stand 53 Hobhouse has mysteriously changed ownership at second defendant's offices where papers were showing first defendant as the new beneficiary. Plaintiff's further view is that this development was activated by fraud. She refuted "selling" the stand to the first defendant. she distanced herself from any document in first defendant's possession relating to alienation of her benefits over stand 53 Hobhouse. She denied signing an affidavit surrendering her claim over the stand to first defendant, she disowned a power of attorney allegedly empowering first defendant's wife to sign papers on behalf of the plaintiff. She also vigorously questioned the authenticity of signatures appearing on documents in possession of the first defendant. Plaintiff strongly feels that she has established the requirements of a declarator and cries for the relief sought in her papers.

7. **First Defendant's Case**

7.0. The first defendant's position and evidence are to the effect that he genuinely "purchased" rights over stand 53 Hobhouse from the plaintiff and approached the developer, second defendant to effect change of beneficiary on documents under the custody of second defendant. It is first defendant's averments that he paid plaintiff USD 11 000 before plaintiff released all documents pertaining to the stand, including the national identity card. At the time the plaintiff signed the power of attorney she had indicated to the first defendant that she was locating to Harare from Mutare and would not want to prejudice the first defendant and delay change of papers. First defendant feels betrayed by the attitude of the plaintiff.

7.1. The first defendant's further position is that the papers at second defendant's offices now reflect his name and those are the papers that would facilitate either cession at City of Mutare and subsequent title over the stand. To his honest belief he is but an innocent purchaser. His prayer is to have plaintiff's case dismissed with costs.

8. **The Law**

8.0. The law relating to the declaratory relief is well traversed. The court has been directed by the plaintiff's counsel to the case of *Johnson* v *Agricultural Finance Corporation* 1996 (1) ZLR 65 upon cross-checking with the law report, nothing was found on that case worthy to assist the court.

8.1. In the case of *Nyashanu* v *Netone Cellular* (*Pvt*) *Ltd* 2019 (1) ZLR 248(H) **MATHONSI J** (as he then was) he iterated ted the position of the law in this jurisdiction. On p 248 E-F it was held:

> "Held that the circumstances under which the court issues declaratory orders have also long been settled. The approach of the court involves a two-stage inquiry. In the first stage, the court inquires whether the applicant is an interested person in the sense of having a direct and substantial interest in the subject matter of the suit which could be prejudicially affected by the judgment of the court. In the second stage of the enquiry the court has to decide, notwithstanding the finding in the first stage that the applicant has a direct interest, whether or not the case in question is a proper case for the exercise of the court's discretion under s 14 of the High Court Act [*Chapter 7*:*06*]."

8.2. At p 248 G-H the learned Judge further held:

> "…that it is trite that a clear and unambiguous offer made by one party to another, once accepted unequivocally by the party to whom it is made, begets a legally binding contract which cannot be unilaterally cancelled by any of the parties to it. This is because an acceptance is a declaration of will which indicates assent to the proposal contained in the offer and is communicated to the offeror. For an acceptance to be effective it must correspond with the terms set out in the offer."

9. **Applying law, the facts**

9.0.0. The court has observed the following as largely common cause.

9.0.1. On p 8 of the consolidated record plaintiff's signature appears inscribed "J Mukure". On p 10 the signature reappears inscribed on a certificate of occupation signed by the plaintiff. It does appear again on p 19, Annexure to the 2 July 2019 agreement of sale between plaintiff and second defendant.

9.0.2. All the signatures on the pages alluded to above reflect a distinct varying trait which would require an expert hand writer to distinguish.

9.0.3. The original documents alluded to above and relied upon by the plaintiff are identical or copies to the ones equally relied upon by the first defendant in his papers. They do originate from one source, the plaintiff.

9.0.4. The affidavit of sale and special power of attorney were signed on the same date 10 June 2025 at Mutare.

9.0.5. The acknowledgement of membership of first defendant by second defendant being the new beneficiary of stand 53 Hobhouse as well as change of names over the house at second defendant's offices are both dated 13 June 2025.

9.0.6. The first defendant is in occupation of stand 53 Hobhouse, Mutare.

9.0.7. The party responsible for change of names, cession or ownership is second defendant and second defendant recognises the first defendant as beneficiary of stand 53 Hobhouse, Mutare.

9.1. *The critical question for determination as per parties' own pretrial conference minute is whether plaintiff has established the requirements for a declarator. Put differently has plaintiff managed to prove her case on a balance of probabilities?*

10. Plaintiff's cause of action is anchored on forged documents which were used by first defendant to effect change of names on the developer's papers relating to stand 53 Hobhouse. Her national identity card in possession of first defendant though presenting a faded image of plaintiff was not disowned by the plaintiff herself. Plaintiff mounted a protracted denial of her signature on documents relied upon by the first defendant. This court is not an expert hand writer and will not simply accept plaintiff's protest. The onus rests on the plaintiff to prove that she did not sign all documents bearing her name and signature. The inference that can easily be drawn from the papers is that given the nature of the documents and the national identity card and details, she is possibly the author of the inscriptions. The onus to rebut that inescapable observation lies with the plaintiff and not first defendant. I have therefore come to a conclusion that the plaintiff entered in to a valid agreement with the first defendant which related to the benefits of stand 53 Hobhouse, Mutare.

11. As crisply put by **MATHONSI J** (as he then was) in the case if *Nyashanu* v *Netone Cellular* (*supra*):

> "a clear and unambiguous offer made by one party to another once accepted unequivocally by the party to whom it is made, begets a legally binding contract which cannot be unilaterally cancelled by any of the parties to it."

12. In the case of *Kovi* v *Ashanti Goldfields Zimbabwe Ltd and Anor* 2007 (2) ZLR 354 (H) per KUDYA J (as he then was) was held at p 355A:

> "that in interpreting contracts, courts give effect to the grammatical and ordinary meaning of the words using in the particular contract. In this case "to dispose" of "in the context of the memorandum of agreement, should be interpreted to mean "to sell"

At p 355 B-C it was further held:

> "that as long as the essential requirements of an agreement of sale are present, the absence of detail does not vitiate the agreement. There are three essential requirements of a contract of sale. These are: agreement; a thing sold and a price. Neither delivery nor payment is necessary to the creation of a contract, for they both fall in the category of its performance."

13. The affidavit of sale which first defendant contend was signed by the plaintiff reads as follows:

"*I am surrendering my stand No 53 Destiny Raheen to Ronnie Gutukunhuwa ID No. 75-452397Z75 who resides at 8063 Natview Park, Mutare. Hence, I am no longer the owner of that stand. Moreover, I have surrendered everything to him except the offer letter which I lost*."

The ordinary grammatical interpretation of that affidavit shows that plaintiff was surrendering her interests in stand 53 Hobhouse to first defendant as per first defendant's version because plaintiff had sold it for USD 11 000. The argument by plaintiff that there is no memorandum of agreement of sale is untenable. Plaintiff and first defendant resolved between themselves that once the affidavit is signed and commissioned then henceforth will constitute an agreement of sale. Indeed, the affidavit bears plaintiff's name on the portion which should be signed by a commissioner of oaths but the commissioner of oath's signature and full details are appearing on the face of the affidavit of sale. The onus to discredit the authenticity of the affidavit lies on the plaintiff and she did not manage to do so on a balance of probabilities. The affidavit is accepted as valid and enforceable in favour of the first defendant.

14. The analysis does not end here. The fundamental question essential in resolving the dispute is what did plaintiff acquire from second defendant, Destiny of Africa? Second defendant

benefited from the government a piece of land adjacent to City of Mutare to develop and parcel it to people in need of assistance as envisaged by second defendant's constitution as a universitas. It Is common cause that in as far as stand 53 Hobhouse is concerned plaintiff was the first beneficiary as per agreement of 2 July 2019 between plaintiff and second defendant. Ownership and control of rights over stand 53Hobhouse remained with second defendant. The facility and arrangement agreed between plaintiff and second defendant was that after plaintiff had met all conditions set by second defendant, second defendant would then approach City of Mutare for second defendant to cede its interests in stand 53 Hobhouse to the chosen beneficiary. After cession the beneficiary would engage City of Mutare for title.

15. Plaintiff in its draft order and pleadings erroneously in my view repeatedly speak of being the "*legitimate owner*" of stand 53 Hobhouse. Ownership alludes to registered title and lease *vis-à-vis* municipal land relates to a cession registered with City of Mutare not an agreement of sale between a developer and a beneficiary. Ownership legally envisages a registered deed of title over the immovable property. Plaintiff has never been a holder of a real right over stand 53 Hobhouse. Municipal receipts attached to plaintiff's pleadings and documents reflect first defendant's name indicating that the legally recognised cession holder of stand 53 Hobhouse is none other than first defendant. First defendant's version is supported independently by the possession of critical documents in custody of the first defendant. Plaintiff could not explain how first defendant came to possess documents relating to her, the national identity card, the agreement of sale between plaintiff and second defendant. Plaintiff alleges fraud but does not speak of theft of those documents by the first defendant. The reasonable inference of possession by first defendant of those documents to me is that plaintiff gave them to first defendant as captured in the affidavit of sale. In terms of the agreement of sale dated 2 July 2019 second defendant reserved its rights to withdraw the offer to plaintiff if the latter failed to meet the conditions agreed by the parties which to me would mean that the party to determine who to give the rights over stand 53 Hobhouse would forever remain the second defendant. If the plaintiff had any cause of action, then in my view it ought to be against second defendant even if one speaks of a double sale as submitted by the plaintiff. The affidavit of sale provided a gate pass to the first defendant to access the second defendant for a change of name

and second defendant after looking at all papers proceeded to register first defendant as beneficiary of stand 53 Hobhouse. First defendant incidentally has been paying religiously all rates and utility bills to the municipality. It is not evidently explained by the plaintiff where she had been between 2019 and 2025 and how first defendant had been paying municipal bills, the presumption of a legitimate sale heavily tilts in favour of the first defendant.

16. The plaintiff has failed to prove on a balance of probabilities the requirements of a d*eclaratur*. She failed to establish what form of rights she acquired from second defendant, she failed to prove or show the subject matter of the suit which could be prejudicially affected by a judgment of a court and she further failed to show that the interest must concern an existing future or contingent right. The first defendant took occupation of the property and effected change of name with the holder of rights, second defendant and the balance of equity tilts in first defendant's favour.

Accordingly, plaintiff's claim fails and there is no reason to deny first defendant his costs. Hence plaintiff's claim for a declarator is dismissed with costs of suit.